

STATE OF NEW YORK

6688--A

2025-2026 Regular Sessions

IN SENATE

March 19, 2025

Introduced by Sens. SKOUFIS, C. RYAN -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- recommitted to the Committee on Civil Service and Pensions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to providing county correction officers with a special optional twenty year retirement plan

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The retirement and social security law is amended by adding a new article 14-C to read as follows:

ARTICLE 14-C

OPTIONAL RETIREMENT PLAN FOR COUNTY CORRECTION OFFICERS OR DEPUTY SHERIFFS PERFORMING AS CORRECTION OFFICERS

Section 561. Definitions.

562. Optional twenty year retirement plan for certain members whose employer elects to provide same.

563. Additional pension benefit for members of optional twenty year retirement plan.

564. Consistent provisions.

§ 561. Definitions. For purposes of this article:

(a) "Member" shall mean a person who is employed as a county correction officer or a deputy sheriff who is engaged directly in correction officer duties that aggregate fifty per centum of their service by a county which elects by resolution or local law, duly adopted, to provide the benefits as authorized by this article.

(b) "Retirement system" shall mean the New York state and local employees' retirement system.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (c) "Creditable service" shall include any and all services performed
2 as a sheriff, undersheriff or deputy sheriff, or correction officer.
3 Credit for service as a member or officer of the state police or as a
4 paid firefighter, police officer or officer of any organized fire
5 department or police force or department of any county, city, village,
6 town, fire district or police district, shall also be deemed to be cred-
7 itable service and shall be included in computing years of total service
8 for retirement pursuant to this section, provided such service was
9 performed by the member while contributing to the retirement system
10 pursuant to the provisions of this article or article eight of this
11 chapter.

12 § 562. Optional twenty year retirement plan for certain members whose
13 employer elects to provide same. (a) Any member of the retirement system
14 may elect to become a member pursuant to the provisions of this section
15 within one year after they become a member, if their employer has
16 elected to make the benefits provided by this section available to
17 members, or within one year after their employer elects to make the
18 benefits provided by this section available to its members.

19 (b) Elections made pursuant to this section shall be in writing and
20 shall be duly acknowledged and filed with the comptroller. Any member
21 who files such an election pursuant to this section may withdraw it
22 after it has been filed for at least a year. Such withdrawal shall be by
23 written notice duly acknowledged and filed with the comptroller.

24 (c) A member participating on the basis of this section at the time of
25 retirement shall be entitled to retire after the completion of twenty
26 years of total creditable service or upon the attainment of age sixty-
27 two, by filing an application therefor in a manner similar to that
28 provided in this chapter.

29 (i) Upon completion of twenty years of such service and upon retire-
30 ment, each such member shall receive a pension sufficient to provide
31 them with a retirement allowance equal to one-fortieth of their final
32 average salary for each year of total creditable services for which they
33 are otherwise entitled but not exceeding in the aggregate one-half of
34 their final average salary.

35 (ii) Upon attainment of age sixty-two and upon retirement without
36 completion of twenty years of such service, each such member shall
37 receive a pension sufficient to provide them with a retirement allowance
38 equal to one-fortieth of their final average salary for each year of
39 creditable service. Every such member shall also be entitled to an addi-
40 tional pension equal to the pension for any other creditable service
41 rendered as otherwise provided for in this chapter. This latter pension
42 shall not increase the total allowance to more than one-half of their
43 final average salary.

44 (d) The increased pensions to such members, as provided by this
45 section, shall be paid from additional contributions made by the partic-
46 ipating employer on account of such members. The actuary of the retire-
47 ment system shall compute the additional contribution required for each
48 member who elects to receive the special benefits provided under this
49 section. Such additional contributions shall be computed on the basis of
50 contributions during the prospective service of such member which will
51 cover the liability of the retirement system for such extra pensions.
52 Upon approval of the comptroller, such additional contributions shall be
53 certified by them to the chief fiscal officer or the participating
54 employer. The amount thereof shall be included in the annual appropri-
55 ation of the participating employer. Such amount shall be paid on the

1 warrant of the chief fiscal officer of the participating employer to the
2 pension accumulation fund of the retirement system.

3 (e) In computing the twenty years of completed service of a member,
4 full credit shall be given for military service as defined in subdivi-
5 sions twenty-nine-a and thirty of section three hundred two of this
6 chapter.

7 (f) Every member participating on the basis of this section shall be
8 separated from the service on the last day of the calendar month next
9 succeeding the calendar month in which they attain age sixty-two,
10 provided, however, that such a member who attained the age of sixty-two
11 before their employer elected to make the benefits provided by this
12 section available to them, or who attains the age of sixty-two within
13 one month after their employer makes such benefits available, to be
14 eligible for a pension computed in accordance with the provisions of
15 this section, shall be separated from the service within three months
16 after their employer makes such benefits available.

17 (g) The provisions of this section shall be controlling notwithstand-
18 ing any other provision of this article to the contrary.

19 (h) The benefits of this section shall be available only to those
20 members whose employer elects to provide such benefits by adopting a
21 resolution or local law to such effect and filing a certified copy ther-
22 eof with the comptroller.

23 (i) The benefits provided by this section shall be payable to a
24 member, unless at the date of retirement such member would otherwise be
25 entitled to a greater benefit under other provisions of this chapter had
26 they withdrawn from this section, in which event such greater benefits
27 shall be payable.

28 § 563. Additional pension benefit for members of optional twenty year
29 retirement plan. (a) A participating employer which has elected, or
30 which elects to provide the benefits of the optional twenty year retire-
31 ment plan for its employees as specified in this article may elect to
32 make contributions for the purpose of providing an additional pension
33 pursuant to this section for members in its employ who are entitled to a
34 pension pursuant to section five hundred sixty-two of this article.
35 Every member employed by an employer which has elected the provisions of
36 section five hundred sixty-two of this article and this section may
37 elect to be covered by the provisions of this section by filing with the
38 comptroller, a duly executed and acknowledged form prepared by the comp-
39 troller for that purpose.

40 (b) Upon retirement, each such member shall receive, for each year of
41 service in excess of twenty, an additional pension which shall be equal
42 to one-sixtieth of their final average salary; provided, however, that
43 the total allowance payable pursuant to this section shall not exceed
44 three-quarters of such member's final average salary.

45 § 564. Consistent provisions. Nothing contained in this article shall
46 be construed to otherwise affect the applicability of article eleven,
47 fourteen or fifteen of this chapter. Any other provisions of this chap-
48 ter relating to mandatory contribution to the retirement system based
49 upon a member's date of membership in such system shall not be deemed to
50 be affected by the provisions of this article, and any member who on the
51 effective date of this article is not required to contribute shall not
52 be required to make any contributions as a result of this section. For
53 those members required to contribute to the retirement system, such
54 contribution shall be treated in the same manner as specified for such
55 members in article fourteen or fifteen of this chapter.

- 1 § 2. Any past service payments required of a county as a result of the
 2 adoption of the benefits permitted by this act may be amortized over a
 3 five or ten-year period at the option of such county.
 4 § 3. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would add article 14-C to the retirement and social security law, allowing any county to provide county correction officers and deputy sheriffs with correction officer duties, the option to retire with twenty years of service credit. The benefit would be one-half of final average salary (FAS). A county may elect to provide an additional one-sixtieth of FAS for each year of service credit beyond 20 years, not to exceed three-fourths (75%) of FAS. Any member electing to become covered under this new plan is expected to retain eligibility for all disability and death benefits provided under their current plan.

The following table reports the estimated increase in an electing county's annual contributions beginning FYE 2027. Annual costs will vary as the billing rates and salary of the affected members change.

Current Plan	20-year plan	20-year plan with sixtieths
Articles 14 or 15	11.2%	12.4%
89* 25-year plan	8.3%	9.5%
County Law Enforcement		
Article 14-B 25-year plan	4.7%	5.9%
Article 14-B 25-year plan with sixtieths	2.4%	3.6%

In addition, there will be an immediate past service cost that will depend upon the affected members' service, salary, tier, current retirement plan and new retirement plan. This cost may be amortized over 5 or 10 years.

Further, we anticipate additional administrative costs to implement the provisions of this legislation.

The exact number of current members as well as future members who could be affected by this legislation cannot be readily determined. Prior to electing to provide these benefits, an employer would be required to submit a roster of eligible members to the New York State and Local Retirement System. This roster would be used to determine an exact cost to the individual employer electing to provide these benefits.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated February 24, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-92. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.